

["matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)

"In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Scope of Motion

"A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense." (Cal. R. Ct. 3.1322(a). Defendant's notice indicates that it is seeking to have "[a]ll punitive damages allegations as to Heffernan" stricken, as set forth in paragraph 47 of the FAC and paragraph 2 of the Prayer for Relief. No other portions of the FAC are at issue.

Analysis

Under Civil Code §3294, punitive damages may be awarded "[i]n an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, **or** malice." (Civil Code § 3294(a) [emphasis added].)

"The words 'oppression, fraud, or malice in Civil Code section 3294 being in the disjunctive, fraud alone is an adequate basis for awarding punitive damages. [citations].'" (*Las Palmas Associates v. Las Palmas Center Associates* (1991) 235 Cal.App.3d 1220, 1239 *quoting Glendale Fed. Sav & Loan Assn. v. Marina View Heights Dev. Co.* (1977) 66 Cal.App.3d 101, 135; *see also Nicholson v. Rose* (1980) 106 Cal.App.3d 457, 462 ["fraud itself implies malice" for punitive damages]).

The third cause of action, which includes the request for punitive damages, is for intentional misrepresentation. "Intentional and negligent misrepresentations are both actionable forms of fraud." (*Conte v. Wyeth, Inc.* (2008) 168 Cal.App.4th 89, 101 fn. 7; *see also* Cal. Civ. Code § 3294 (c)(1) defining fraud to include an intentional misrepresentation.) "Punitive damages are recoverable in those fraud actions involving intentional, but not negligent, misrepresentations." (*Alliance Mortgage Co. v. Rothwell* (1995) 10 Cal.4th 1226, 1241.)

"A fraud cause seeking punitive damages need not include an allegation that the fraud was motivated by the malicious desire to inflict injury upon the victim. The pleading of fraud is sufficient." (*Stevens v. Superior Court* (1986) 180 Cal.App.3d 605, 610 multiple citations omitted.) Defendant did not demurrer to the cause of action or seek to have it stricken. Thus, as "[f]raud alone is an adequate ground for awarding punitive damages....," and the FAC asserts a fraud cause of action (i.e. intentional misrepresentation), that is sufficient to support a claim for punitive damages. (*Orient Handel v. United States Fid. & Guar. Co.* (1987) 192 Cal.App.3d 684, 697 ["Fraud alone is an adequate ground for awarding punitive damages..."].)

Conclusion

Defendant's motion to strike is **denied**.

7. 9:00 AM CASE NUMBER: C24-01956
CASE NAME: JAMES MARITIME HOLDINGS, INC. VS. MATTHEW MATERAZO
*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Defendant Matthew C. Materazo's ("Defendant") Motion for Judgement on the Pleadings.

As explained below, **Defendant's MJOP is taken off the Court's law and motion calendar.**

Meet and Confer

Before filing a motion for judgment on the pleadings, "the moving party shall meet and confer **in person, by telephone, or by video conference**," with the party that filed the pleading at issue. (Cal. Code Civ. Proc. § 439 (a) emphasis added.) The meet and confer shall take place at least 5 days before filing the motion. (*Id.* at (a)(2).) The moving party shall file and serve with the motion a declaration stating either that (1) the parties met and conferred and could not reach agreement, or (2) the party that filed the pleading failed to respond to the meet and confer request and/or failed to meet and confer in good faith. (*Id.* at (a)(3).)

Here, the Court continued this motion as a courtesy to provide Defendant additional time to comply with the meet and confer statute on its tentative ruling for the October 3, 2025, hearing. Defendant has ignored this Court's order and has yet to file any declaration attesting to any effort to meet and confer efforts for this motion, as required by statute. The meet and confer requirements are mandatory and must be complied with in good faith, and Defendant has failed to comply despite additional time and a court order. (CCP § 439 (a)(2).)

The Court's docket is busy, and the Court views the situation as unfair to allow Defendant to perpetually take a spot on its calendar while litigants who comply with applicable statutes and court orders are made to wait, given that Defendant ignores mandatory statutory requirements and court orders to meet and confer.

Conclusion

As provided above, **Defendant's MJOP is taken off the Court's law and motion calendar.**

8. 9:00 AM CASE NUMBER: C24-03031
CASE NAME: ISIDRO MYRICK-BUSTOS VS. STARS BEHAVIORAL HEALTH GROUP, INC.
MOTION TO STRIKE 1ST AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

Granted. Parties stipulate to strike portions of the first amended complaint.